



Universität St.Gallen

Introduction to Constitutional Law and Public International Law

Prof. Dr. iur. Patricia Egli, LL.M. (Yale)
Professor for Public Law

From insight to impact.

Agenda

- Civil Liberties and Freedoms
 - Freedom of Expression and Freedom of Assembly
 - Right to Property
 - Economic Freedom

Freedom of Communication – St. Gallen Case



Freedom of Communication – St. Gallen Case

In February 2026, several hundred people wanted to demonstrate in St. Gallen against compulsory vaccination. Some of the demonstrators were carrying halberds and some of them were known as members of a far-right group. Therefore, some left-wing groups had called for a counterdemonstration. On safety grounds, the St. Gallen police ordered the demonstrators to stop their march against compulsory vaccination. Some demonstrators set off despite warnings from the police, broke through a police cordon and began marching through the old town carrying banners. To prevent clashes between the different groups, the police had to intervene with tear gas. Violent incidents took place nonetheless.

Your friend A. is a member of an animal rights association which applied for a permission to hold a demonstration in the old town of St. Gallen next Saturday starting at the Vadianplatz. In light of the violent incidents in the last weeks, the St. Gallen authorities have refused to grant permission for the demonstration applying the cantonal Police Statute. Your friend A. asks you to assess the legal situation for the animal rights association.

Freedom of Communication – St. Gallen Case

Art. 40 Cantonal Police Statute

¹ Demonstrations on public ground require a permission.

² The permission may be refused on public safety grounds.

1. Step: Is a Fundamental Right Affected?

Is the fundamental right guaranteed on national or international level?



Is the scope of application of the fundamental right affected?



Is the victim a beneficiary of the fundamental right?



Is the claim filed against an addressee of the fundamental right?



Conclusion: A fundamental right is affected.

2. Step: Is the restriction of the fundamental right lawful (Art. 36 Cst)?

Is there a legal basis for the restriction (Art. 36 para. 1 Cst)?



Is there a public interest justifying the restriction or the need to protect fundamental rights of others (Art. 36 para. 2 Cst)?



Is the restriction proportionate (Art. 36 para. 3 Cst)?



Is the essence of the fundamental right respected (Art. 36 para. 4 Cst)?



Conclusion: The restriction of the fundamental right is lawful.

1. Step: Is a Fundamental Right Affected?

Is the fundamental right guaranteed on national or international level?

The freedom of assembly is guaranteed on national level in Art. 22 Cst and on international level in Art. 11 ECHR and Art. 21 ICCPR.

In addition, the freedom of expression is guaranteed on national level in Art. 16 Cst and on international level in Art. 10 ECHR and Art. 19 ICCPR.

Federal Constitution of the Swiss Confederation, SR 101

Art. 22 Freedom of Assembly

- ¹ Freedom of assembly is guaranteed.
- ² Every person has the right to organize meetings and to participate or not to participate in meetings.

Federal Constitution of the Swiss Confederation, SR 101

Art. 16 Freedom of Expression and of Information

- ¹ Freedom of expression and of information is guaranteed.
- ² Every person has the right freely to form, express, and impart their opinions.
- ³ Every person has the right freely to receive information to gather it from generally accessible sources and to disseminate it.

1. Step: Is a Fundamental Right Affected?

Is the scope of application of the fundamental right affected?

→ The freedom of assembly protects the right to organize meetings and to participate or not to participate in meetings.

→ The term “assembly” comprises all possible forms of people coming together for a specific common opinion forming purpose for a certain time. However, only peaceful assemblies are protected.

→ The freedom of assembly protects meetings in enclosed spaces and outdoors, as well as in private and public places.

→ Demonstrations are a specific form of assembly, falling in the scope of application of the freedom of assembly.

1. Step: Is a Fundamental Right Affected?

Is the scope of application of the fundamental right affected?

→ According to the right to free expression, individuals have the right freely to form, express, and impart their opinions.

→ Opinions are results of thoughts and rationally comprehensible and communicable beliefs such as statements, assessments or views, whereas the form, means and content of communication are irrelevant. However, only opinions relating to non-material matters (i.e. those not relating to commercial interests) are protected.

→ The right is also applicable to demonstrations, as the purpose of a demonstration is to collectively manifest a certain opinion on an issue.

1. Step: Is a Fundamental Right Affected?

Is the victim a beneficiary of the fundamental right?

→ The beneficiaries of the freedom of assembly are natural persons.

→ Legal persons are beneficiaries of those aspects of the right not exclusively aimed at protecting human beings.

→ The beneficiaries of the freedom of expression are natural persons.

→ Legal persons are beneficiaries of those aspects of the right not exclusively aimed at protecting human beings.

1. Step: Is a Fundamental Right Affected?

Is the claim filed against an addressee of the fundamental right?

The state and all state authorities are addressees of the freedom of assembly and the freedom of expression.

2. Step: Is the restriction of the fundamental right lawful (Art. 36 Cst)?

Is there a legal basis for the restriction (Art. 36 para. 1 Cst)?

The restriction must be determined by a *legal rule* (Art. 36 para. 1 sentence 1 Cst), which is general (indefinite number of individuals) and abstract (indefinite number of cases). In addition, the legal rule must be formulated with sufficient precision.

The legal rule must conform to a certain *legal form* depending on the significance of the restriction (Art. 36 para. 1 sentence 2 Cst). Significant restrictions must have their basis in a legal statute enacted by the legislature on either the federal or the cantonal level.

2. Step: Is the restriction of the fundamental right lawful (Art. 36 Cst)?

Is there a public interest justifying the restriction or the need to protect fundamental rights of others (Art. 36 para. 2 Cst)?

In general, public interests embrace all measures available to the state for the promotion of the common good. Police interests are an important category of the public interests (protection of public order, safety, peace, health, morals, and good faith in business dealings).

2. Step: Is the restriction of the fundamental right lawful (Art. 36 Cst)?

Is the restriction proportionate (Art. 36 para. 3 Cst)?

Is the measure adequate? The measure must be adequate to achieve a legitimate public purpose.

Is the measure necessary? Where less restrictive measures would achieve the same goal, the restriction will be deemed disproportionate.

2. Step: Is the restriction of the fundamental right lawful (Art. 36 Cst)?

Is the restriction proportionate (Art. 36 para. 3 Cst)?

Is the measure proportionate in relation to the public purpose pursued?

If the negative effects of a measure outweigh the public interests and the need to protect fundamental rights of others, the measure must be considered as disproportionate.

Protection of Communication

Democratic Function	Individual Function
Fundamental rights guaranteeing communication are essential for a democratic deliberation.	Fundamental rights guaranteeing communication safeguard the basic human need to freely exchange opinions and information with other human beings.

2. Step: Is the restriction of the fundamental right lawful (Art. 36 Cst)?

Is the essence of the fundamental right respected (Art. 36 para. 4 Cst)?

If a restriction disregards the essence of a fundamental right, the restriction is per se a violation of the constitution.

Affecting the very essence of all fundamental rights guaranteeing free expression, censorship in the sense of prior systematic control by the state is absolutely prohibited (Art. 17 para. 2 Cst). In particular, it is acknowledged that the essence of the freedom of assembly would be violated if state authorities would seek to ascertain the topics of discussion and aims of each assembly before they take place.

Right to Property (Art. 26 Cst) - Case

A. is the owner of a lot of land located in the city of Bern. The lot of land is partially built on and is situated in the city building area. The city of Bern needs to build new railway lines for public transportation. For the only possible further development of the railway lines, the authorities need a strip of A.'s land along the existing railway line of 30 cm. Based on the cantonal statute on expropriation, the cantonal authorities inform A. that the property of the respective land is transferred to the city of Bern.

All agree that the transfer of the respective land is a lawful restriction of the right to property. However, A. is interested to know if the city of Bern must pay compensation.

Federal Constitution of the Swiss Confederation, SR 101

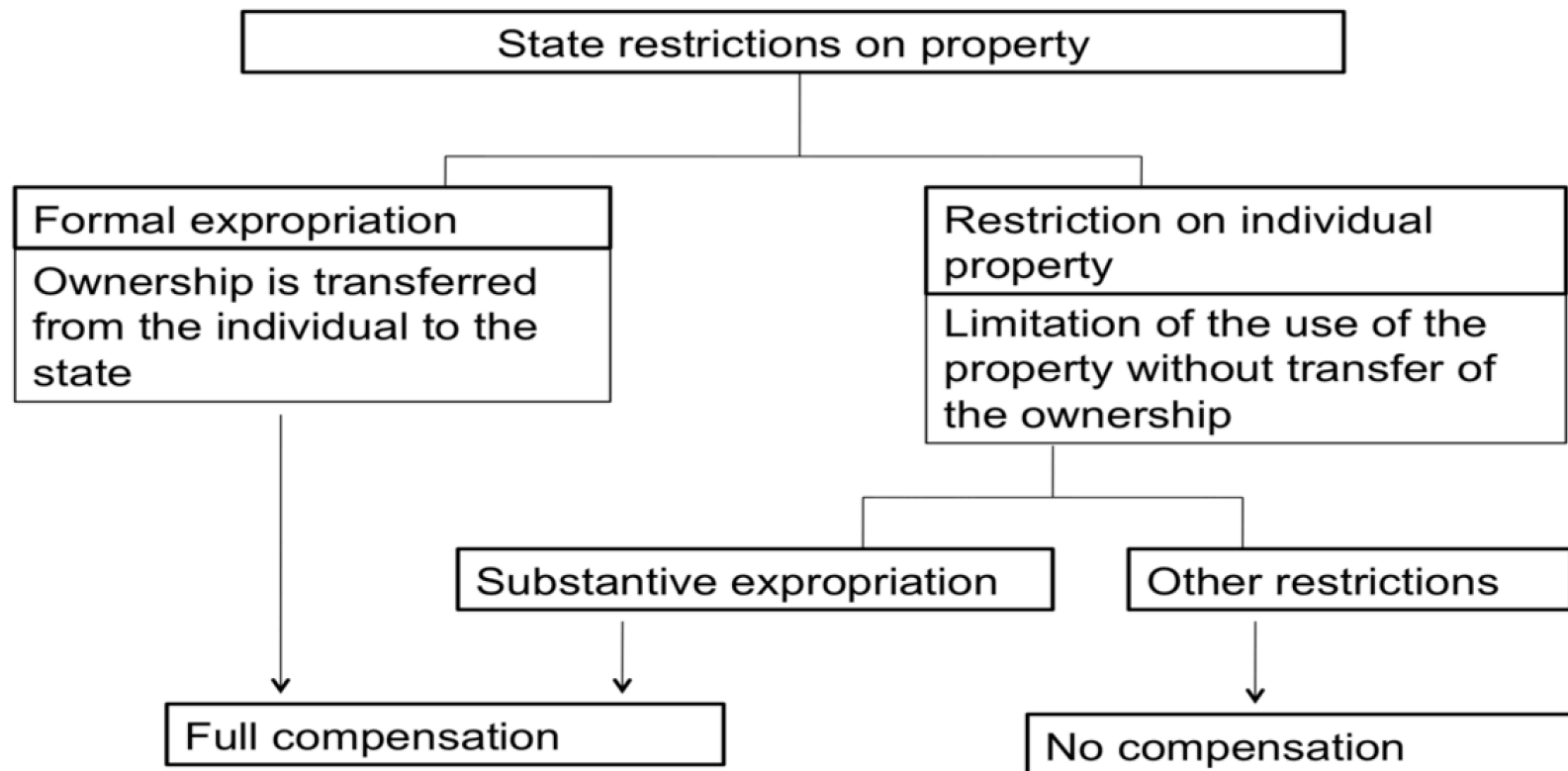
Art. 26 Right to Property

- ¹ The right to own property is guaranteed.
- ² The expropriation of property and any restriction on ownership that is equivalent to expropriation shall be compensated in full.

Right to Property (Art. 26 Cst) – Scope of Application

Institutional Guarantee	Individual Guarantee	Compensation Guarantee
Preservation of the essential rights of an owner to dispose and make use of its property	Protection of the individual property in a given situation from state intrusion	Full compensation in cases of expropriations and restrictions of ownership equivalent to expropriation
Art. 26 para. 1 Cst	Art. 26 para.1 Cst	Art. 26 para. 2 Cst

Right to Property (Art. 26 Cst) – Scope of Application



Right to Property (Art. 26 Cst)

Formal Expropriation

- Formal expropriation means the compulsory purchase of private property for public purposes. The ownership is transferred from the individual to the state.
- Based on Art. 26 para. 2 Cst, full compensation is guaranteed.

Right to Property (Art. 26 Cst)

Substantive Expropriation

- The previous or foreseeable future use of property rights is prohibited or limited in a serious manner, i.e. the owner is deprived of an essential right following from property.
- Based on Art. 26 para. 2 Cst, full compensation is guaranteed.
- Example: A. is the owner of a lot of land located in the city of Bern. The lot of land is partially built on and is situated in the city building area. The city of Bern then decides to enact a new statute on building. Under the new statute, the lot of A. is not situated in the building area any more but in the area of sport and education facilities, i.e. only sport and education buildings can be built on the remaining lot of land.

Right to Property (Art. 26 Cst)

Substantive Expropriation

- An owner is affected by a restriction on property in such a specific manner that it would be unacceptable not to pay a compensation (special sacrifice).
- Based on Art. 26 para. 2 Cst, full compensation is guaranteed.
- Example: A., B. and C. own a collection of 590 archaeological pieces. Based on the statute on the protection of historical evidence, the cantonal authorities decide the following measures: duty to get a cantonal permission to move a piece within the canton; prohibition to alter a piece, even for restauration reasons.

Economic Freedom (Art. 27 Cst) – Food Truck Case

K., Indian citizenship, has been living with his family for over ten years in Winterthur and has a permanent residency permit. He started his own business cooking in a food truck in Winterthur's old town. K. is preparing South Indian specialties in his food truck and thus earns a living for himself and his Indian family. K. receives a letter from the Winterthur administrative police. The letter states that the administrative police withdraws his permit to run a food truck in Winterthur immediately based on Art. 26 para. 1 lit. b Cantonal Health Statute.

Version 1: The reason for the decision of the administrative police is that the food truck competes with local restaurants. They had complained about the difficult economic situation.

Version 2: The reason for the decision of the administrative police is that the cantonal chemist criticised the hygiene in the truck at his last visit.

K. is shocked and asks you to assess the legal situation.

Economic Freedom (Art. 27 Cst) – Food Truck Case

Art. 26 Cantonal Health Statute

1 The following administrative measures may be taken in the event of offences against this Act, its implementing provisions or the decrees issued on the basis thereof:

- a. a warning;
- b. withdrawal of permits and the like;
- c. confiscation;
- d. charging with an amount not exceeding CHF 10,000.

1. Step: Is a Fundamental Right Affected?

Is the fundamental right guaranteed on national or international level?

Economic freedom is guaranteed on the national level in Art. 27 Cst.

Federal Constitution of the Swiss Confederation, SR 101

Art. 27 Economic Freedom

- ¹ Economic freedom is guaranteed.
- ² Economic freedom includes in particular the freedom to choose an occupation as well as the freedom to pursue a private economic activity.

1. Step: Is a Fundamental Right Affected?

Is the scope of application of the fundamental right affected?

Economic freedom protects all private economic activities, which have as their objective to gain profit or income. Art. 27 para. 2 Cst in particular guarantees the free access to private economic activities, the free choice of a profession and the free exercise of any private economic activity.

K.'s objective in running a food truck is to gain income. Art. 27 para. 2 Cst guarantees the free access to such a private economic activity.

Interim conclusion: Therefore, the economic freedom of K. is affected.

1. Step: Is a Fundamental Right Affected?

Is the victim a beneficiary of the fundamental right?

→ All Swiss citizens and legal persons constituted under Swiss private law are beneficiaries of the economic freedom.

→ Foreign nationals with a permanent residency permit and also those who are entitled to renew their temporary residency permit have a right to enjoy economic freedom. Foreign legal persons are beneficiaries of economic freedom if they have a treaty-based right to exercise a private economic activity on Swiss territory.

Interim conclusion: In the case at hand, K. is of Indian nationality but has a permanent residency permit. He therefore is a beneficiary of Art. 27 Cst.

1. Step: Is a Fundamental Right Affected?

Is the claim filed against an addressee of the fundamental right?

The state and all state authorities are addressees of the economic freedom.

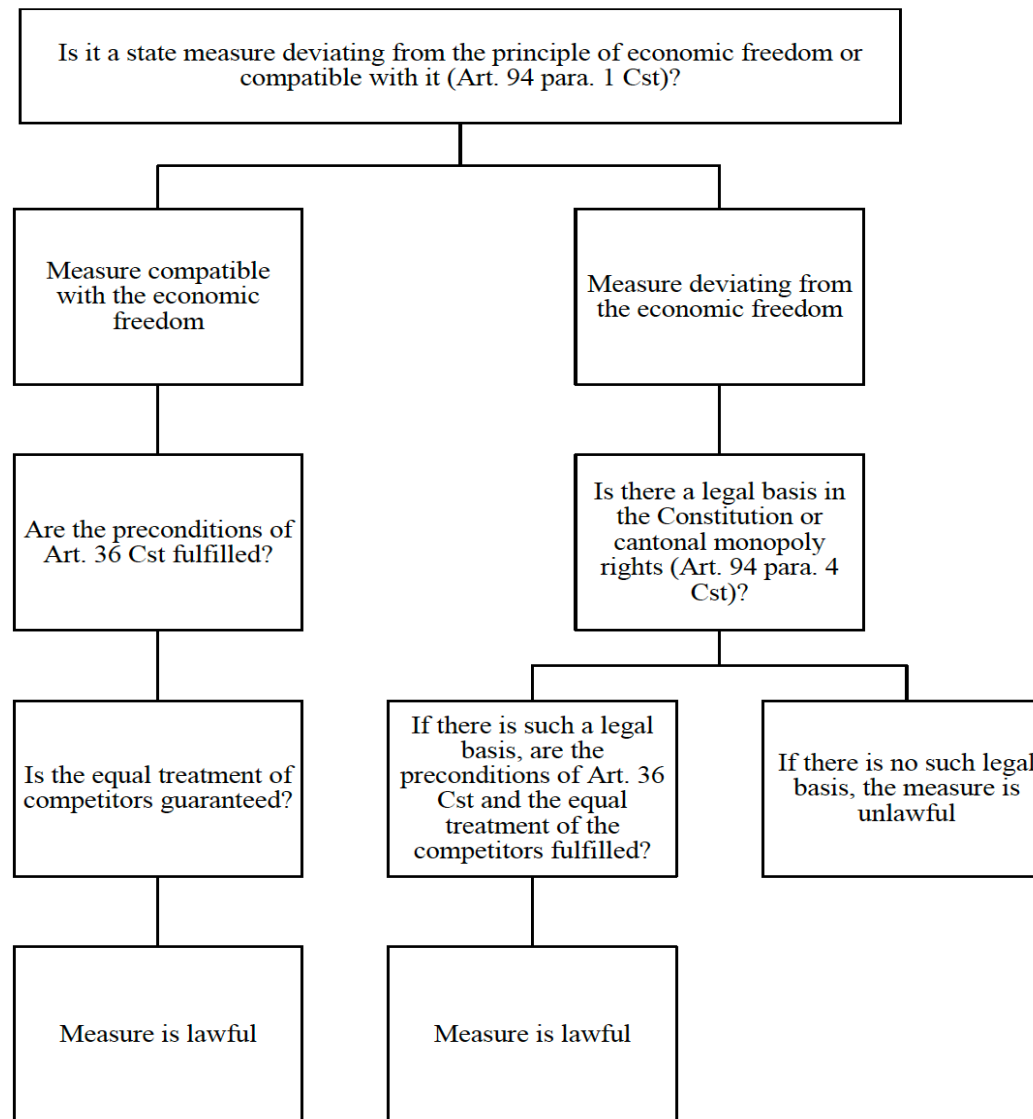
In the case at hand, the cantonal administrative police is a state authority.

Interim conclusion: The cantonal administrative police is an addressee of the affected right.

Conclusion

To conclude, the economic freedom is affected.

Economic Freedom: Lawful Restriction?



2. Step: Is the restriction of the fundamental right lawful (Art. 36 Cst)?

Is it a state measure deviating from the principle of economic freedom or compatible with it (Art. 94 para. 1 Cst)?

State measures deviating from the principle of economic freedom, and, in particular, measures designed to restrain competition, are permitted only if they are provided for in the Constitution or based on cantonal monopoly rights (Art. 94 para. 4 Cst).

2. Step: Is the restriction of the fundamental right lawful (Art. 36 Cst)?

Is there a legal basis for the restriction (Art. 36 para. 1 Cst)?

The restriction must be determined by a *legal rule* (Art. 36 para. 1 sentence 1 Cst), which is general (indefinite number of individuals) and abstract (indefinite number of cases). In addition, the legal rule must be formulated with sufficient precision.

The legal rule must conform to a certain legal form depending on the significance of the restriction (Art. 36 para. 1 sentence 2 Cst). Significant restrictions must have their basis in a legal statute enacted by the legislature on either the federal or the cantonal level.

2. Step: Is the restriction of the fundamental right lawful (Art. 36 Cst)?

Is there a public interest justifying the restriction or the need to protect fundamental rights of others (Art. 36 para. 2 Cst)?

In general, public interests embrace all measures available to the state for the promotion of the common good. Police interests are an important category of the public interests (protection of public order, safety, peace, health, morals, and good faith in business dealings).

2. Step: Is the restriction of the fundamental right lawful (Art. 36 Cst)?

Is the restriction proportionate (Art. 36 para. 3 Cst)?

Is the measure adequate? The measure must be adequate to achieve a legitimate public purpose.

Is the measure necessary? Where less restrictive measures would achieve the same goal, the restriction will be deemed disproportionate.

2. Step: Is the restriction of the fundamental right lawful (Art. 36 Cst)?

Is the restriction proportionate (Art. 36 para. 3 Cst)?

Is the measure proportionate in relation to the public purpose pursued?

If the negative effects of a measure outweigh the public interests and the need to protect fundamental rights of others, the measure must be considered as disproportionate.

2. Step: Is the restriction of the fundamental right lawful (Art. 36 Cst)?

Is the essence of the fundamental right respected (Art. 36 para. 4 Cst)?

If a restriction disregards the essence of a fundamental right, the restriction is per se a violation of the constitution.

The right to choose a profession or occupation constitutes the essence of the economic freedom in its individual function. In addition, the essence of economic freedom may be violated in cases of forced labor (Art. 4 ECHR, Art. 8 ICCPR). In its institutional function, the essence of the economic freedom lies in the free market economic system as an institution.

2. Step: Is the restriction of the fundamental right lawful (Art. 36 Cst)?

Is the equal treatment of competitors guaranteed?

This principle demands that state regulations in economic matters are neutral and may not favor one direct competitor over another. Direct competitors are members of the same branch of business offering the same products to the same group of consumers in order to satisfy the demand of that consumer group.

Universität St.Gallen (HSG)
Dufourstrasse 50
90000 St.Gallen
Schweiz
+41 71 224 21 11
info@unisg.ch
unisg.ch



Law School (LS-HSG)
Bodanstrasse 3
9000 St.Gallen

unisg.ch/universitaet/schools/law

Akkreditierungen

